

Inclusions are things the seller owns that you would like to be included with the home—think kitchen appliances, washer and dryer, window treatments, the backyard shed, and so on. Anything “attached” to the home is considered part of the home and *should* be included in the sale—but note the emphasis on *should*. Leave nothing up for question.

You can even go so far as saying “stainless steel Samsung refrigerator in the kitchen at time of showing” in your contract if you feel the need for extra clarity. Mindy once purchased a home and was disappointed to find a mismatched washer and dryer upon moving in. As it turns out, the seller switched them for cheaper models right before moving out.

Learn from her mistake: If you want it, put it in the contract.

(Your lender, on the other hand, doesn’t like to see extraneous things on the purchase contract. Appliances are fine, but a long list of other items gives lenders the heebie-jeebies. Make sure your agent uses a separate Bill of Sale for these items.)

Exclusions

I bet you can see where this is going. This is where you list anything you don’t want the seller to leave behind—like that ratty old pool table in the basement, the avocado-green fridge in the garage, or the literal mountain of junk in the backyard.

Don’t settle for something as simple as “seller’s personal property” in this section, as that could cause confusion. Also, to make a stronger offer, consider keeping this section to a minimum. If you’re willing to take care of that literal mountain of junk after you move in, you may be able to use this as a bargaining chip for negotiating the sales price of the home.

Dates and Deadlines

There will be a long list of deadlines, all of which have confusing names that your agent can clarify. We’ll dig into what a lot of these mean (like earnest money, title objection, due diligence, and so on), but the two biggest and easiest are the closing and possession dates.

“Closing Time” is more than just a classic ’90s exit-the-bar song by Semisonic. The day you “close” on the house is the day you sign all the paperwork and the house becomes legally yours. This is also when your